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Patent Litigation Trends, What Changed for Technology Companies This Year

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Patent litigation strategy that worked well two years ago is producing worse outcomes today, and it is not because the technology changed, it is because the venues and the judges did.

Venue choice is shifting again

The districts that were reliably favorable to patent holders have gotten more selective, and defendants have gotten better at forcing venue fights early. Where a case gets filed now matters as much as what the case is actually about.

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Damages theories are getting more scrutiny

Courts are pushing back harder on damages models that stretch the royalty base beyond the patented component itself. A theory that survived expert challenge three years ago is not guaranteed to survive one today.

Defensive filing strategy matters as much as offense

Technology companies that treat their own patent portfolios purely as an offensive asset are leaving a real defensive tool on the table. A well-built portfolio changes the settlement calculus in a suit brought against you, not just one you bring.

None of this means patent enforcement is less viable, it means the strategy has to be built around this year's venues and this year's judges, not the ones from when the portfolio was first assembled.

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